

2014 WL 1881564 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Chadley HUGHES, William Hughes, Samantha Santucci and Katren Hughes, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department New York City Police Officer Hugh J. Stanton, Shield No. 23227, New York City Police Officer Charles Alexander, Shield No. 4377 and New York City Police Officer Maribel Fuertes, Shield No. 25003, Defendants.

No. 0302408-2014.
April 30, 2014.

Summons

[Tracey A. Grant](#), Esq., 26 Court Street, Suite 714, Brooklyn, New York 11242, (718) 858-3000, for the plaintiff.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summon is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York April 20, 2014

TRACEY A. GRANT, ESQ.

Attorney(s) for the Plaintiff

26 Court Street, Suite 714

Brooklyn, New York 11242

(718) 858-3000

COMPLAINT

Plaintiffs, **CHADLEY HUGHES**, WILLIAM HUGHES, SAMANTHA SANTUCCI and KATREN HUGHES, by and through their counsel, Tracey A. Grant, Esq. alleges the following facts and causes of action against the above-captioned Defendants:

PARTIES

1. Plaintiff **Chadley Hughes** (also referred to as "C. HUGHES" throughout this complaint") is a natural person, who, at all times mentioned herein, resided in Bronx County, New York.

2. Plaintiff William Hughes (also referred to as “W. HUGHES” throughout this complaint”) is a natural person, who, at all times mentioned herein, resided in Bronx County, New York.

3. Plaintiff Samantha Santucci (also referred to as “S. SANTUCCI” throughout this complaint”) is a natural person, who, at all times mentioned herein, resided in Bronx County, New York.

4. Plaintiff Katren Hughes (also referred to as “K. HUGHES” throughout this complaint”) is a natural person, who, at all times mentioned herein, resided in Bronx County, New York.

5. At all times mentioned herein, Defendant City of New York (also referred to as “CITY” throughout this complaint) was a municipal agency organized and existing under and by virtue of the laws of the State of New York.

6. At all times mentioned herein, Defendant New York City Police Department (also referred to as “NYPD” throughout this complaint) was a municipal agency organized and existing under and by virtue of the laws of the State of New York.

7. At all times mentioned herein, Defendant New York City Police Officer Hugh J Stanton, (“STANTON”) was an employee of the NYPD and the CITY. Specifically, upon information and belief, the NYPD employed Hugh J. Stanton as a Police Officer with the 47th Precinct within Bronx County, New York. At all times mentioned herein, Hugh J. Stanton was acting within the course and scope of his employment.

8. At all times mentioned herein, Defendant New York City Police Officer Charles Alexander (“ALEXANDER”) was an employee of the NYPD and the CITY. Specifically, upon information and belief, the NYPD employed Charles Alexander as a Police Officer with the 47th Precinct within Bronx County, New York. At all times mentioned herein, Charles Alexander was acting within the course and scope of his employment.

9. At all times mentioned herein, Defendant New York City Police Officer Maribel Fuertes (“FUERTES”) was an employee of the NYPD and the CITY. Specifically, upon information and belief, the NYPD employed Maribel Fuertes as a Police Officer with the 47th Precinct within Bronx County, New York. At all times mentioned herein, Maribel Fuertes was acting within the course and scope of her employment.

STATEMENT OF FACTS

10. On May 4, 2010 at approximately 5 pm William Hughes was standing in front of his residence, at 1705 Bussing Avenue, Bronx, New York, smoking a cigarette. Approximately two (2) minutes later he observed a big, male white/hispanic, wearing black shirt and jeans running towards him. William Hughes became nervous, as a few months prior across the street, there was a home robbery/shooting and the perpetrator was described as a male hispanic. Consequently, William Hughes ran inside of his residence, immediately thereafter, William Hughes head a repeated kicking in of the front door, but no words were spoken. William Hughes' brother **Chadley Hughes** came down the stairs after hearing the commotion and helped his brother to hold the door closed. As William Hughes held onto the door, **Chadley Hughes** ran upstairs to call the police. Immediately thereafter, a number of males in plain clothes came up the stairs with guns drawn and shouted “you are under arrest.”

11. **Chadley Hughes** was handcuffed behind his back and was then dropped down the stairs by one of the arresting officers. William Hughes was punched repeatedly about the body and placed in handcuffs. **Chadley Hughes** and William Hughes sustained physical injuries and required medical attention and was subsequently taken to the 47th police precinct.

12. During the incident, Samantha Santucci was in her bedroom with her three (3) month old baby, the baby's father is William Hughes. Samantha Hughes, who resided at the residence, heard the commotion and immediately thereafter officers entered the room. The officers proceeded to search the bedroom.

13. There were numerous marked and unmarked vehicles outside the house when Katren Hughes, a supervisor at Department of Corrections, the homeowner of 1705 Bussing Avenue, Bronx, New York and mother of Chadley and William Hughes arrived home at approximately 6:30 p.m. Katren Hughes was asked for identification at which time she showed the officer her corrections officer badge. However, a female officer refused to let Katren Hughes in her home and stated in sum and substance, "your son has been arrested, he has a koran, and is a terrorist", the officer also informed Katren Hughes that the officers found kilos of cocaine and marijuana and that they were waiting for a search warrant. The officer also stated in sum and substance "we're going to be here until 3 or 4 a.m. and we're going to break down the walls. Katren Hughes overheard an officer tell another officer "we might have to arrest her."

14. Thereafter Katren Hughes observed a number of officers coming and going out of the house. An ambulance was called by the officers and upon arrival EMS examined Samantha Santucci and William Hughes' baby and informed the officer "nothing is wrong with the baby." The officer then took the EMS Worker around the corner. Despite what EMS stated the officer said that the baby had to be seen by a doctor. The officer placed Samantha Santucci under arrest and transported her to the 47th precinct.

15. The officers gave the baby to the grandmother, Katren Hughes, who was taken by the police to Montefiore Hospital. Once the child was examined the officers called agency for children services (ACS) claiming that the child was in danger and the parents, William Hughes and Samantha Hughes were arrested and charged with child endangerment. The ACS Representative who appeared at the hospital informed Katren Hughes that the baby could be placed in the custody of the aunt, despite this information, the officers requested that the baby taken into the custody of ACS. Once the baby was taken into custody Katren Hughes attempted to leave the hospital, but an officer stated in sum and substance "where are you going? You are under arrest" and placed handcuffs on Katren Hughes. The officer placed Katren Hughes in the police vehicle and instead of taking Katren Hughes to the precinct, the officer drove back to Katren Hughes' home, stating, "I have to pick something up."

16. Upon arriving at the house, with the arresting officer, Katren Hughes observed an officer searching her handbag that was left behind and she observed the officer remove an envelope which contained the officer's information, which Katren Hughes requested earlier. Katren Hughes observed her blood pressure medication, photographs of herself receiving city accommodations had been placed on the porch. Katren Hughes suffers from high blood pressure and takes prescription medication. An officer stated, in sum and substance "where are the drugs? I want to arrest you but this is what I am going to do, we're going to forget about what happen today, go to work tomorrow, like nothing happened."

17. Katren Hughes observed this same officer bring flour out of the house and dump it into a bag, asking another officer in sum and substance, how much flour to put in the bag. Katren Hughes also overheard an officer state in sum and substance to another officer "by the way can I get a copy of the search warrant?" The officers pulled out draws, punched holes in the walls and tore up the house before obtaining a search warrant and without probable cause. The handcuffs were removed and Katren Hughes was not taken to the precinct.

18. Once the precinct, William Hughes, **Chadley Hughes** and Samantha were placed in holding cells. While in the holding cell William Hughes was approached by a plain clothes officer who stated in sum and substance "you might want to talk to us or I am going to arrest your mother and take your baby." All three were taken to central booking at approximately 8 a.m. the following morning and William Hughes was forced to undergo a DNA swab while at central booking, if he refused the officer informed William Hughes that he would be held in central booking indefinitely.

19. **Chadley Hughes** and Samantha Santucci were arraigned more than twenty-four (24) hours after their arrest and William Hughes was arraigned numerous hours after **Chadley Hughes** and Samantha Santucci were arraigned. Despite the officers false allegations of cocaine, marijuana and ammunition possession, the judge released all three (3) on their own recognizance.

20. All three were charged with criminal possession of a controlled substance, menacing, criminal possession of a weapon, criminal possession of marijuana, unlawful possession of marijuana, possession of ammunition, endangering the welfare of a child and harassment. Yet, despite these charges and the evidence claimed to have been discovered by the named officer, the prosecution did not present this case to the grand jury. Instead, the prosecution withdrew all felony charges and returned the case to criminal court. Consequently, after two years of court appearances, more than 25 court appearances, refusing to take a plea bargain and maintaining their innocence, all charges against **Chadley Hughes**, William Hughes and Samantha Santucci were dismissed on **June 28, 2012**.

21. Williams Hughes and Samantha Santucci temporarily lost custody their infant child as a result of their false arrest. They were forced to appear in family court and was investigated for allegations of suspected child abuse/endangerment of a child. They were given visitation rights, while their daughter was placed in foster care. Upon Child Protective Services completion of their investigation, Samantha Santucci and William Hughes were allowed to regain custody of their infant daughter, months after having lost custody. Samantha Santucci and William Hughes were also required to undergo parenting classes, because of their false arrest and malicious prosecution. Samantha Santucci and William Hughes did not regain custody of their infant until on or about **November 2010**.

22. Katren Hughes, the legal grandmother of said infant was refused temporary custody of the infant by members of the NYPD, despite Samantha Santucci having given actual consent to Katren Hughes.

23. The cocaine the officers alleged to have recovered inside of the residence was analyzed and was found to be a non-controlled substance. This was despite the fact that the officers claimed to have had experience in identifying cocaine and believed that what they recovered was in fact cocaine. At no time was William Hughes, **Chadley Hughes**, Samantha Hughes or Katren Hughes in possession of cocaine.

24. These officers claimed to have recovered marijuana cigarettes and bags of marijuana, yet at no time were Defendants in possession of same. Rather these officers perjured themselves and planted this alleged marijuana in an attempt to cover up the illegal entry and search of the residence and subsequently the false arrest and malicious prosecution of William Hughes, **Chadley Hughes** and Samantha Hughes.

25. The officers also perjured themselves alleging that were in possession of ammunition, again in attempt to cover up the illegal entry and search of the residence and subsequently the false arrest of William Hughes, **Chadley Hughes** and Samantha Hughes.

26. William Hughes, **Chadley Hughes**, Samantha Hughes and Katren Hughes did file a complaint with the civilian complaint review board.

27. During the pendency of the criminal case William Hughes and **Chadley Hughes** were repeatedly harassed by police officers within the confines of the 47th police precinct.

28. Katren Hughes is the legal owner of the residence located at 1705 Bussing Avenue, Bronx, New York. The members of the NYPD who illegal entered and searched her residence, causing tremendous damage to said home. The members of the NYPD ransacked the home and caused tremendous damage under the guise of having a valid search warrant, thereby giving immunity for any damage said search created.

29. However, On June 28, 2010 said search warrant case was dismissed, invalidating the legitimacy of said warrant. Consequently, the members of the NYPD who created said damage to Katren Hughes' residence did so without the benefit of a valid search warrant and is therefore liable for said property damage.

AS AND FOR A FIRST CAUSE OF ACTION AS AGAINST
STANTON, ALEXANDER AND FUERTES
(MALICIOUS PROSECUTION UNDER U.S.C § 1983)

30. Plaintiffs repeats and reiterates the allegation set forth in paragraphs “1” through “29” with the same force and effect as though fully stated herein.

31. Defendants STANTON, ALEXANDER and FUERTES knowingly swore to a false criminal court complaint initiating the criminal prosecution of Plaintiffs C. HUGHES, W. HUGHES and S. SANTUCCI.

32. Defendants STANTON, ALEXANDER and FUERTES Manufactured, or caused to be manufactured, false, unreliable and/or misleading “evidence” intending it to be used by the prosecution in determining whether to initiate criminal proceedings against Plaintiffs C. HUGHES, W. HUGHES and S. SANTUCCI., which “evidence” was used by the prosecution.

33. By virtue of the foregoing, Defendants STANTON, ALEXANDER and FUERTES, with actual malice, initiated and continued or caused the initiation and continuance of, criminal proceedings against Plaintiffs C. HUGHES, W. HUGHES and S. SANTUCCI for which they knew or should have known there was no probable cause and for which in fact there was no probable cause and thereby caused Plaintiffs C. HUGHES, W. HUGHES and S. SANTUCCI. to be deprived of their liberty.

34. Such proceeding ultimately was terminated in Plaintiffs' C. HUGHES, W. HUGHES and S. SANTUCCI favor.

35. The aforementioned conduct of Defendants STANTON, ALEXANDER and FUERTES which committed, operated to deprive Plaintiffs C. HUGHES, W. HUGHES and S. SANTUCCI of their rights under the constitution and laws of the United States.

(a) Not be prosecuted upon false, fabricated, manufactured, misleading or inherently unreliable “evidence” including statements and documents and;

(b) Not be deprived of their liberty absent probable cause to believe they have committed a crime in violation of their rights under the Fourth and Fourteenth Amendments to the United States Constitution; and

36. The foregoing violations of Plaintiffs' C. HUGHES, W. HUGHES and S. SANTUCCI federal constitutional rights by Defendants STANTON, ALEXANDER and FUERTES which substantially, proximately, and foreseeably caused the initiation and continuation of Plaintiffs' C. HUGHES, W. HUGHES and S. SANTUCCI criminal prosecution, loss of liberty and other injuries and damages.

37. The foregoing violations of Plaintiffs' C. HUGHES, W. HUGHES and S. SANTUCCI rights amounted to Constitutional torts and within the scope of Defendants STANTON, ALEXANDER and FUERTES employment and authority.

38. Defendants STANTON, ALEXANDER and FUERTES committed the foregoing violations of PLAINTIFFS' C. HUGHES, W. HUGHES and S. SANTUCCI rights knowingly, intentionally, willfully and/or with deliberate indifference to PLAINTIFFS' C. HUGHES, W. HUGHES and S. SANTUCCI constitutional rights or to the effect of such misconduct upon PLAINTIFFS' C. HUGHES, W. HUGHES and S. SANTUCCI constitutional rights.

39. By reason of the foregoing Defendants STANTON, ALEXANDER AND FUERTES are liable to PLAINTIFFS' C. HUGHES, W. HUGHES and S. SANTUCCI pursuant to [42 U.S.C. section 1983](#), for compensatory and for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION AS AGAINST

STANTON, ALEXANDER AND FUERTES

(Constitutional Violations [42 U.S.C. § 1983](#))

40. Plaintiffs repeats and reiterates the allegation set forth in paragraphs “1” through “39” with the same force and effect as though fully stated herein.

41. Defendants STANTON, ALEXANDER and FUERTES under color of state law, subjected PLAINTIFFS' K. HUGHES, C. HUGHES, W. HUGHES and S. SANTUCCI to the forgoing acts and omissions without due process of law in violation of [42 U.S.C. sec 1983](#) thereby depriving plaintiffs of their rights, privileges and immunities secured by the Fourth and fourteenth amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

A. Entry into the home without a search warrant and without “probable cause” to believe evidence of a crime is present.

B. Such a search and/or seizure is unconstitutional under the 4th Amendment

C. freedom from unreasonable search and seizure of their persons and property; freedom from abuse of process;

42. Defendants' deprivation of plaintiffs constitutional rights resulted in the injuries and damages set forth above.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST

CITY OF NEW YORK (MONELL CLAIM UNDER [§ 1983](#))

43. Plaintiff re-alleges and incorporate by reference the allegations set forth in the foregoing paragraphs “1 through 42” as if fully set forth herein.

44. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual defendants had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

45. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the individual defendants and other employees, had de facto policies, practices customs, and usages of failing to properly train, screen, supervise, or discipline employees, police officers and of failing to inform the individual defendants' and other employees' supervisors of their need to train, screen, supervise or discipline said defendants and employees. These policies, practices, customs and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

46. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual defendants, has def facto policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the cover-up of other law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or through “the blue wall of silence”. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

47. Over a period of time the NEW YORK CITY POLICE DEPARTMENT engaged in a pattern of allowing officers to manufacture, or caused to be manufactured, false, unreliable and/or misleading testimony intending it to be used to wrongfully convict defendants.

42. Defendants' deprivation of plaintiffs constitutional rights resulted in the injuries and damages set forth above.

**AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK (MONELL CLAIM UNDER § 1983)**

43. Plaintiff re-alleges and incorporate by reference the allegations set forth in the foregoing paragraphs “1 through 42” as if fully set forth herein.

44. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual defendants had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

45. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the individual defendants and other employees, had *de facto* policies, practices customs, and usages of failing to properly train, screen, supervise, or discipline employees, police officers and of failing to inform the individual defendants' and other employees' supervisors of their need to train, screen supervise or discipline said defendants and employees. These policies, practices, customs and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

46. At all times material to this complaint, defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual defendants, has *de facto* policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the cover-up of other law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or through “the blue wall of silence”. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

47. Over a period of time the NEW YORK CITY POLICE DEPARTMENT engaged in a pattern of allowing officers to manufacture, or caused to be manufactured, false, unreliable and/or misleading testimony intending it to be used to wrongfully convict defendants.

48. Over a long period of time the NEW YORK CITY POLICE DEPARTMENT has engaged in a pervasive pattern of misconduct designed and practiced to systematically and with deliberate indifference deny basic rights to defendants under the Constitutional of the United States.

49. The conduct of the NEW YORK CITY POLICE DEPARTMENT in the within case is part of a ongoing pattern of corruption, indifference and ineptitude that is the result of a system wide lack of proper training, guidance and supervision.

50. As a result of the foregoing, plaintiffs were deprived of their liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and was otherwise damaged and injured.

WHEREFORE, Plaintiffs demands the following relief jointly and severally against all of the Defendants.

(a) Compensatory damages in the sum of \$500,000.00(Five Hundred Thousand Dollars).

(b) Punitive damages in the amount of \$500.000.00 (Five Hundred Thousand Dollars).

(c) Costs and attorney's fees.

(d) Such other and further relief as this court may deem appropriate and ? ?

DATED: April 20, 2014 Brooklyn, New York

Yours, etc.

TRACEY A. GRANT, ESQ.

Attorney for Plaintiffs

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